

HOUSE BILL NO. 521

INTRODUCED BY C. SCHOMER, V. RICCI, M. VINTON, G. LAMMERS, S. VINTON, M. YAKAWICH, J.
SCHILLINGER, G. OBLANDER, D. LENZ, B. MITCHELL, K. SEEKINS-CROWE

A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING THAT A PERSON CONVICTED OF A CRIME WHO
IS INJURED DURING THE COMMISSION OF THE CRIME HAS NO RIGHT OF ACTION."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Person convicted of crime -- no right of action for injuries and damages. A person who is convicted of a crime and is injured or suffers other damages during the commission of the crime does not have a right of action to recover damages IF A VICTIM CAUSING THE INJURY OR DAMAGES DID NOT USE ANY FORCE OR USED JUSTIFIABLE FORCE, AS DEFINED IN TITLE 45, CHAPTER 3, PART 1.

NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an integral part of Title 27, chapter 1, part 5, and the provisions of Title 27, chapter 1, part 5, apply to [section 1].

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